

Framework Agreement — Backup Fresh Produce Supply

Master Supply Agreement — Produce

Contract ID: CTR-TP-2023-008
Document Ref: LIDL-UK/SUP/2023/TP-008
Supplier: Total Produce Ltd (SUP010)
Category: Produce
Annual Value: £1,800,000 per annum (when activated)
Effective: 1 September 2023 — 31 August 2026

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1. FRAMEWORK PURPOSE

- 1.1 This Framework Agreement establishes Total Produce Ltd ("Supplier") as a pre-approved backup supplier for fresh produce categories within designated Lidl UK regions.
- 1.2 This Framework does not constitute a standing order. Supply commences only upon formal activation notice under Clause 4.
- 1.3 Primary supplier agreements may reference this Framework (e.g. FreshDirect UK CTR-FD-2024-001, Clause 7.3).

2. PRODUCT SCOPE

- 2.1 Covered categories: fresh fruit, vegetables, salad, and herbs as per Lidl UK produce taxonomy.
- 2.2 Excluded: chilled ready meals, dairy, bakery, and ambient goods.

3. BACKUP SUPPLY SCOPE — SOUTHERN PRODUCE

- 3.1 **BACKUP SCOPE:** Total Produce agrees to serve as pre-approved backup supplier for fresh produce categories across the Southern Region (8 stores: Bristol, Exeter, Plymouth, Brighton, Southampton, Portsmouth, Oxford). **Maximum backup volume allocation: 35% of regional produce requirements when activated under a primary supplier contingency clause.**
- 3.2 Geographic coverage includes South West and South East England distribution corridors.
- 3.3 The Supplier maintains contingency capacity at Dublin Fresh Terminal and Bristol redistribution hub.

4. ACTIVATION PROCEDURE

- 4.1 **ACTIVATION:** Backup supply is activated upon written notice from Lidl UK following trigger of a contingency clause in the primary supplier agreement. Upon activation, Total Produce shall commence fulfilment within 48 hours for the agreed volume percentage and region.
- 4.2 Activation notice shall specify: volume percentage, store list, duration, and product SKU priorities.
- 4.3 Deactivation requires 14 days notice unless primary supplier SLA is restored above 95% for two consecutive measurement periods.

5–7. COMMERCIAL, QUALITY, TERM

- 5.1 Backup pricing per Framework Price Schedule; not exceeding primary supplier contracted rates by more than 5%.
- 6.1 BRC Issue 9 compliance mandatory. Temperature-controlled logistics 2–8°C.

7.1 Framework term: 1 September 2023 to 31 August 2026. Auto-renewal subject to performance review.

For and on behalf of Lidl Great Britain Limited

Authorised Signatory — Procurement